

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.
BRIAN CICERO, Purchased 6-20-23

Plaintiff

Plaintiff designates Queens
County as the place of trial

- against -

The basis of the venue is
where the tort arose

CITY OF NEW YORK,
POLICE OFFICER TORRES (Tax Reg. #951343) and
POLICE OFFICER JOHN DOE,

SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
June 20, 2023


THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:

CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
BRIAN CICERO

Plaintiff,

Index No.

Verified Complaint

- against -

CITY OF NEW YORK,
POLICE OFFICER TORRES (Tax Reg. #951343) and
POLICE OFFICER JOHN DOE,

Defendants.
-----X

Plaintiff BRIAN CICERO, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY,
by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court
and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff BRIAN CICERO was a resident of Queens County in the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendants, POLICE OFFICER TORRES (Tax Reg. # 951343)("P.O. TORRES") and POLICE OFFICER JOHN DOE ("P.O. DOE") were and are police officers employed by Defendants.

BACKGROUND

5. On the 30th day of April, 2022, at approximately 10:00 pm., Plaintiff was lawfully and properly attending a baseball game at CITI FIELD located at 41 Seaver Way in Queens, New York.

6. Plaintiff did not engaged in any conduct that would warrant his ejection from CITI FIELD or warrant his arrest for any crime or offense.

7. Despite the above, P.O. TORRES and P.O. DOE approached Plaintiff and without just cause or provocation, pushed Plaintiff, tackled Plaintiff, violently grabbed Plaintiff, handcuffed Plaintiff and demanded that Plaintiff accompany the officers to a room inside of CITI FIELD.

8. After Plaintiff was taken into a room inside of CITI FIELD, P.O. TORRES directed Plaintiff to enter a cell located inside of the room.

9. Shortly thereafter, P.O. TORRES demanded that Plaintiff remove all of Plaintiff's clothing.

10. Plaintiff did not initially comply but did so after P.O. TORRES told Plaintiff that Plaintiff would remain in custody until he was completely naked.

11. In response, Plaintiff removed all of his clothing and stood naked.

12. After approximately ten minutes, P.O. TORRES gave Plaintiff a Criminal Court Summons for the charge of Disorderly Conduct, which directed Plaintiff to appear in Criminal Court on May 18, 2022.

13. On May 18, 2022, when Plaintiff appeared in Court, the Summons charging Plaintiff with Disorderly Conduct was dismissed and sealed.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.

15. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 7-12, and Plaintiff did not consent to that arrest or confinement.

16. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right. Defendants lacked probable cause to arrest Plaintiff.

17. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.

19. In arresting Plaintiff, the Defendants acted with malice.

20. The Defendants lacked probable cause to arrest Plaintiff.

21. P.O. TORRES filled out a Criminal Court Summons knowing the information contained therein was false, incomplete and misleading.

22. When Plaintiff appeared in Criminal Court in accordance with the Summons, the criminal action commenced. The matter was terminated in Plaintiff's favor when all charges were dismissed and sealed on May 18, 2022.

23. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: ASSAULT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. P.O. TORRES and P.O. DOE, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by pushing Plaintiff, tackling Plaintiff, violently grabbing Plaintiff and handcuffing Plaintiff. P.O. TORRES further assaulted Plaintiff by forcing Plaintiff to remove all of Plaintiff's clothing.

26. As a result of being assaulted by P.O. TORRES, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: BATTERY

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

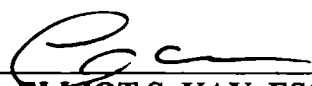
28. When P.O. TORRES and P.O. Doe pushed, tackled and violently handcuffed Plaintiff, P.O. TORRES and P.O. DOE subjected Plaintiff to a harmful or offensive bodily contact. P.O. TORRES and P.O. DOE intended to make that contact without Plaintiff's consent.

29. As a result of being battered by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
June 20, 2023

Yours, etc.,
THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:

CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
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BRIAN CICERO,

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Plaintiff

-against-

CITY OF NEW YORK,
POLICE OFFICER TORRES (Tax Reg. #951343) and
POLICE OFFICER JOHN DOE,

Defendants

-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
June 20, 2023



ELLIOT S. KAY